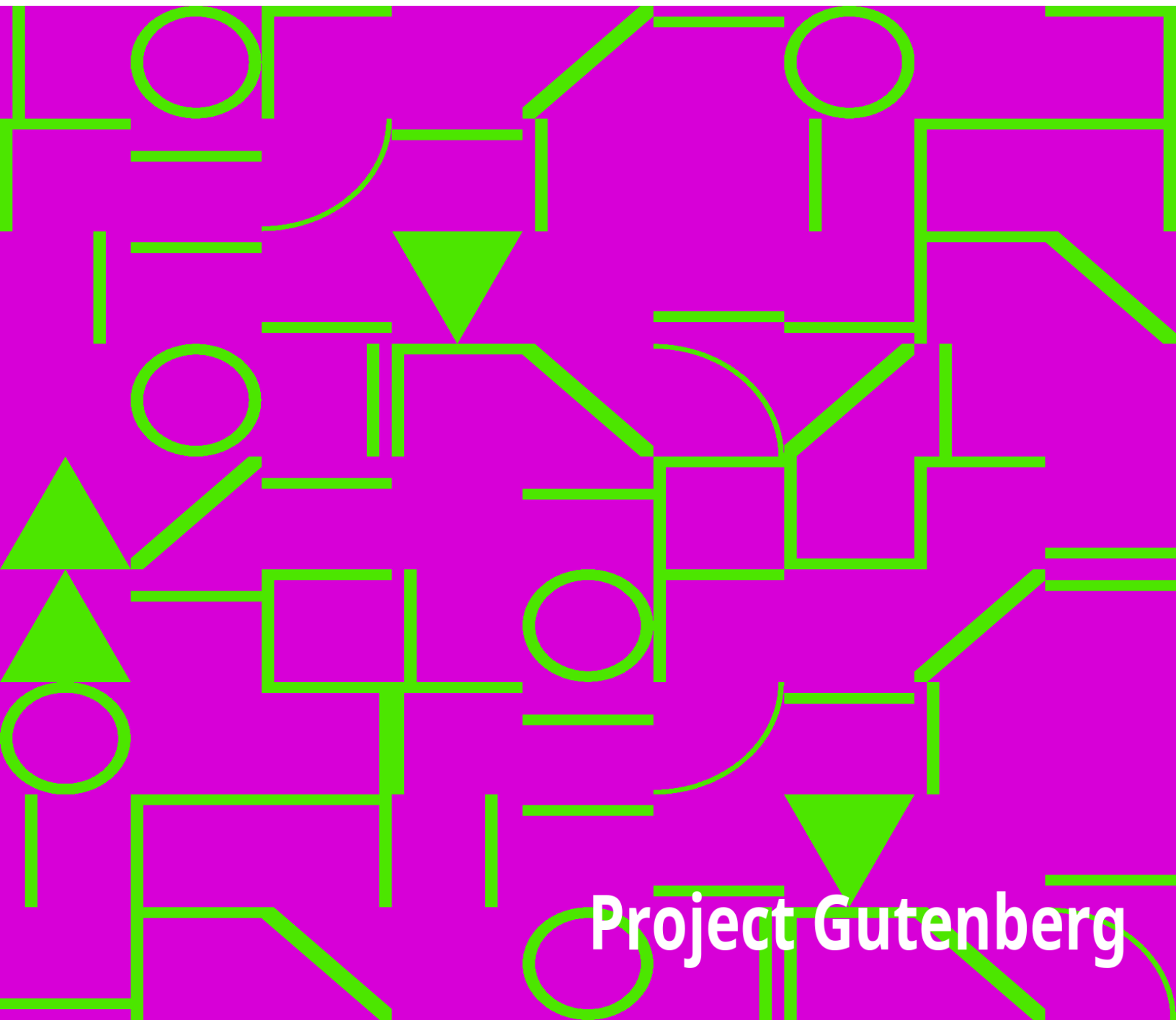


Two New Pocket Gophers from Wyoming and Colorado

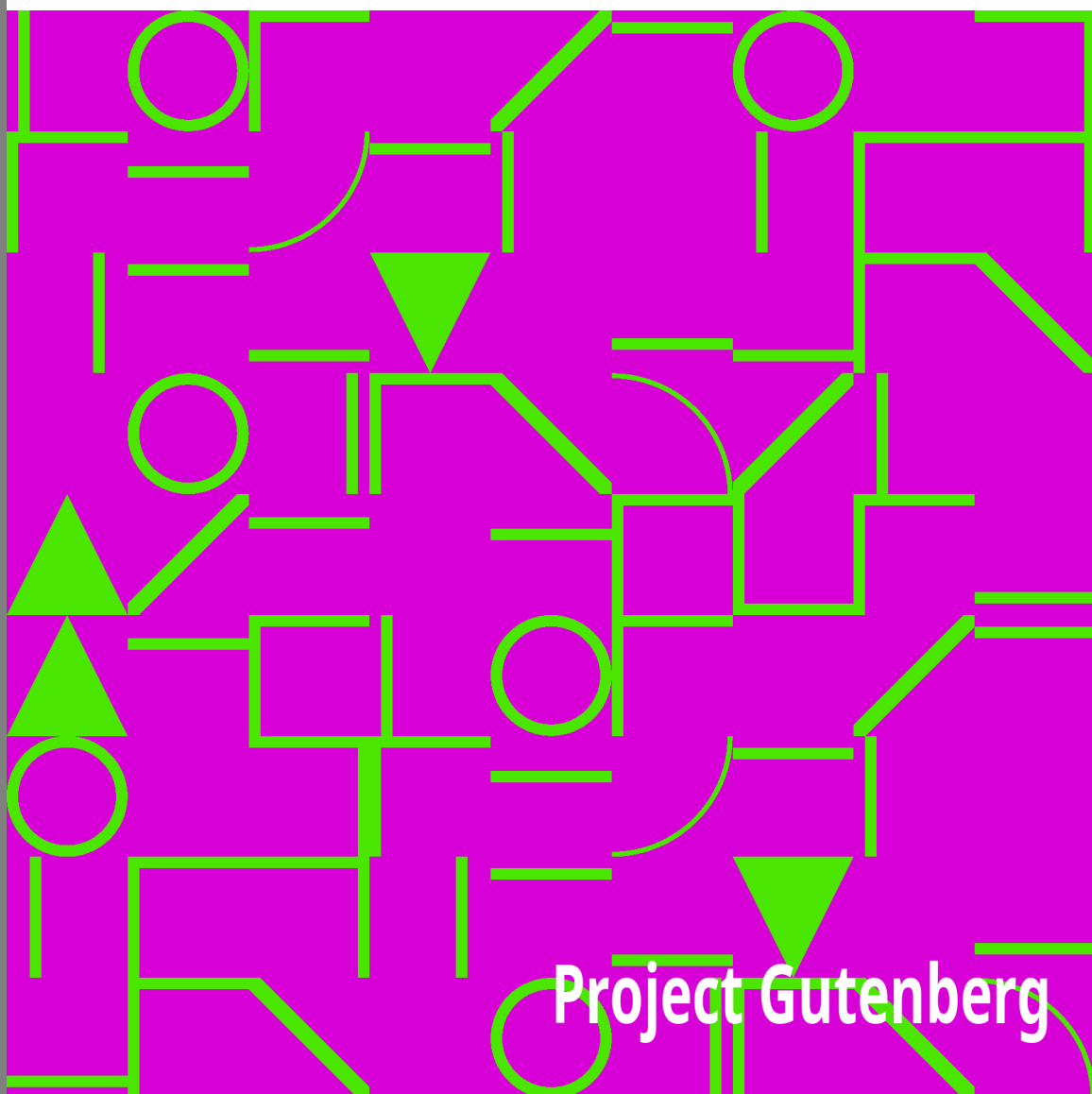
E. Raymond Hall and H. Gordon Montague

An abstract geometric pattern composed of various shapes including circles, squares, triangles, and lines, rendered in shades of blue and green on a black background.

Project Gutenberg

Two New Pocket Gophers from Wyoming and Colorado

E. Raymond Hall and H. Gordon Montague



Project Gutenberg

The Project Gutenberg eBook of Two New Pocket Gophers from Wyoming and Colorado

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Two New Pocket Gophers from Wyoming and Colorado

Author: E. Raymond Hall
H. Gordon Montague

Release date: June 17, 2009 [eBook #29141]

Language: English

Other information and formats: www.gutenberg.org/ebooks/29141

Credits: Produced by Chris Curnow, Val Wooff, Joseph Cooper and the
Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK TWO NEW POCKET GOPHERS FROM
WYOMING AND COLORADO ***

Two New Pocket Gophers from Wyoming and Colorado

BY

E. RAYMOND HALL and H. GORDON MONTAGUE

University of Kansas Publications

Museum of Natural History

Volume 5, No. 3, pp. 25-32

February 28, 1951

University of Kansas

LAWRENCE

1951

UNIVERSITY OF KANSAS PUBLICATIONS, MUSEUM OF NATURAL HISTORY

Editors: E. Raymond Hall, Chairman, Edward H. Taylor, A. Byron Leonard, Robert W. Wilson

Volume 5, No. 3, pp. 25-32

February 28, 1951

UNIVERSITY OF KANSAS
Lawrence, Kansas

PRINTED BY
FERD VOILAND, JR., STATE PRINTER
TOPEKA, KANSAS
1951

23-6627

Two New Pocket Gophers from Wyoming and Colorado

BY

E. RAYMOND HALL AND H. GORDON MONTAGUE

In the academic year of 1947-48 Montague studied the geographic variation in *Thomomys talpoides* of Wyoming. His study was based upon materials then in the University of Kansas Museum of Natural History. Publication of the results was purposely delayed until previously reported specimens from certain adjacent areas, especially in Colorado, could be examined. In the autumn of 1950 one of us, Hall, was able to examine the specimens from Colorado; also, the specimens from Wyoming accumulated in the past two seasons of field work in Wyoming were examined by Hall. A result of these studies is the recognition of two heretofore unnamed subspecies of the northern pocket gopher in southeastern Wyoming.

Grateful acknowledgment is made of the opportunity to study the Colorado specimens in the Biological Surveys Collection of the United States National Museum, and of the financial assistance from the Kansas University Endowment Association which permitted the field work in Wyoming.

Descriptions and names for the two new subspecies are given below:

Thomomys talpoides rostralis new subspecies

Type.—Female, adult, skull and skin, no. 17096 Mus. Nat. Hist., Univ. Kansas; from 1 mi. E Laramie, 7164 ft., Albany County, Wyoming; obtained on July 16, 1945, by C. Howard Westman; original no. 320.

Range.—Southern Wyoming and south in the mountains of Colorado to the Arkansas River but not including the Colorado River drainage except in Grand County and part of Routt County.

Diagnosis.—Size medium (see measurements); upper parts ranging from between Cinnamon-Rufous and Hazel (capitalized terms are of Ridgway, Color Standards and Color Nomenclature, Washington, D. C., 1912) in the eastern part of the range to between Argus Brown and Brussels Brown in the western part of the range; sides Cinnamon-Rufous; throat whitish; remainder of under-parts whitish, in many specimens tipped with Ochraceous-Buff; feet and tail whitish; rostrum long; nasals ordinarily truncate posteriorly; temporal ridges nearly parallel; interpterygoid space broadly V-shaped.

Comparisons.—From *Thomomys talpoides clusius* (topotypes), *T. t. rostralis* differs in: Body longer; color more reddish (lighter with less brownish and more ochraceous); rostrum both longer and broader, actually and also in relation to length of the skull; skull broader interorbitally; upper molariform tooth-row longer; tympanic bullae less inflated. For comparison with *T. t. attenuatus* to the east, see the account of that subspecies.

From *Thomomys talpoides macrotis* (topotypes) to the southeast, *T. t. rostralis* differs in: Body shorter; upper parts slightly more ochraceous and less grayish; skull averaging smaller in all measurements except that interorbital region is broader and rostrum and upper molariform tooth-row are longer; nasals truncate versus emarginate, and consistently shorter; basilar length consistently less in specimens of equal age; mastoidal breadth less in 16 of 17 specimens of *rostralis*; temporal ridges parallel instead of divergent posteriorly; exposed parts of upper incisors shorter; tympanic bullae more angular antero-laterally.

From *Thomomys talpoides fossor* (specimens from Rico, Silverton, Hermit and Pagosa Springs, all in Colorado), the subspecies to the southward, *T. t. rostralis* differs in: Longer body; lighter color of upper parts; nasals truncate rather than rounded posteriorly; temporal ridges more nearly parallel (less divergent posteriorly); rostrum longer (averaging longer and broader); skull wider across zygomatic arches in 11 of 12 specimens of *rostralis*.

Remarks.—Geographic variation is evident in the material examined. In the initial study, one of us, Montague, separated the material from the Medicine Bow Range in Wyoming as a subspecies different from that at Laramie and the adjoining mountains to the eastward because of the darker color of the western animals and the smaller size of males. Acquisition of more material from still farther west (Sierra Madre) in Wyoming and the examination of material in the United States Biological Surveys Collection from Colorado discloses that there is a cline of increasing intensity of color from the geographic range of *T. t. cheyennensis* at Pine Bluffs, Wyoming, westward to the eastern side of the Sierra Madre at a locality three miles east and five miles north

of Savery, Wyoming. A further deterrent to setting apart the animals of the Medicine Bow Mountains as a separate subspecies is the large size of males from the North Platte River Valley southeast of Saratoga. The males from the valley of the North Platte are intermediate in size between those from the Medicine Bow Mountains and those from the Laramie River Valley. Females from the same places are available in longer series and show less variation. If there is a difference in size in the females, those from the mountains are larger than those from lower elevations on either side.

The examination that one of us, Hall, has made of the related materials from Colorado reveals, as we supposed would be the case, that a large area formerly assigned to the geographic range of *Thomomys talpoides fossor* is to be assigned to the geographic range of the newly named *Thomomys talpoides rostralis*. It should be added that, at this writing, the lack of ideally complete material from southwestern Colorado leaves some doubt as to the range of variation properly to be included within the geographic range of *T. t. fossor*. Consequently, study of a larger number of specimens from more localities in Colorado may show that the boundary between the geographic ranges of *T. t. fossor* and *T. t. rostralis* should be shifted from where we have tentatively placed it.

Specimens examined.—Total number, 168. Unless otherwise indicated, those from Colorado are in the United States National Museum, Biological Surveys Collection, and those from Wyoming are in the Museum of Natural History of the University of Kansas.

Colorado. *Routt Co.*: Hahns Peak, 2; Hayden, 1. *Jackson Co.* Pearle, North Park, 9000 ft., 2; Canadian Creek, North Park, 6; 5 mi. E Canadian Creek, 1; Rabbit Ear Mts., Arapaho Pass, 5. *Larimer Co.*: Elkhorn, 7000 ft., 1; Estes Park, 7. *Grand Co.*: Coulter, 4. *Boulder Co.*: Longs Peak, 3; Gold Hill (the skin only; skull does not belong), 1; 3 mi. S Ward, 9000 ft., 10 (K. U.); 5 mi. W Boulder, 7. *Gilpin Co.*: Blackhawk (U. S. N. M.), 2. *Jefferson Co.*: Golden, 1; Golden foothills, 7300 ft., 1. *Park Co.*: Como, South Park, 9800 ft., 1. *El Paso Co.*: Cascade, 1 (too young for certain sub-specific identification).

Wyoming. *Carbon County*: 13 mi. E and 6 mi. S Saratoga, 8500 ft., 1; 14 mi. E and 6 mi. S Saratoga, 8800 ft., 1; 7 mi. S and 11 mi. E Saratoga, 5; 8 mi. S and 6 mi. E Saratoga, 10; 10 mi. N and 14 mi. E Encampment, 8000 ft., 2; 10 mi. N and 16 mi. E Encampment, 8000 ft., 1; 8 mi. N and 16 mi. E Encampment, 8400 ft., 10. *Albany Co.*: 2 ¼ mi. ESE Browns Peak, 10300 ft., 7; 3 mi. ESE Browns Peak 10000 ft., 5; 2 mi. S Browns Peak, 10600 ft., 7; 3 mi. S Browns Peak, 1; 2 mi. E and ½ mi. S Medicine Bow Peak, 10800 ft., 2; 5 mi. N Laramie, 7200 ft., 1; 1 mi. E Laramie, 7164 ft., 18; Laramie Mts., 10 mi. E Laramie (8500 ft., 2; 9000 ft., 1), 3 (U. S. B. S.); 5 ½ 9; mi. ESE Laramie, 8500 ft., 4; 8 mi. E and 4 mi. S Laramie, 8600 ft., 5; 8 mi. E and 6 mi. S Laramie, 8500 ft., 1; 15 mi. SE Laramie, Pole Mtn., 8200 ft., 3 (U. S. B. S.); 1 mi. SSE Pole Mtn., (8250 ft., 4; 8350 ft., 6), 10; 1 mi. S Pole Mtn., 8350 ft., 2; 2 mi. SW Pole Mtn., 8300 ft., 6; 2 ½ mi. S Pole Mtn., 8340 ft., 1; 3 mi. S Pole Mtn., 1; Woods P. O., 2 (U. S. N. M.); Fort Russell, 1 (U. S. N. M.); Sherman, 2 (U. S. N. M.).

Additional records.—Bailey (N. Amer. Fauna, 39:101, 112, November 15, 1915) has recorded the following specimens, which on geographic grounds, would presumably be referable to *Thomomys talpoides rostralis*. COLORADO: Estes Park (referred by Bailey, p. 101, to *T. t. clusius*), 1; Colorado City, 1; Colorado Springs, 2 ½ mi. N, 6000 ft., 1; Colorado Springs, east of Palmer Park, 1; Montgomery, 3; Nederland, 4; Teller County Divide, 1. These specimens have not been examined by us.

***Thomomys talpoides attenuatus* new subspecies**

Type.—Male, adult, skull and skin, no. 15095 Mus. Nat. Hist., Univ. Kansas; from 3 ½ mi. W Horse Creek Post Office, 7000 ft., Laramie County, Wyoming; obtained on July 16, 1945, by Henry W. Setzer; original no. 629.

Range.—Southeastern Wyoming from Niobrara County south into Weld County, Colorado.

Diagnosis.—Size small; color pale (whitish); skull smooth and, relative to its length, slender; rostrum relatively long; nasals truncate posteriorly; middle parts of zygomatic arches straight; temporal ridges low and more widely separated in middle extent than at anterior or posterior ends; tympanic bullae rounded and moderately inflated; interpterygoid space V-shaped.

Comparisons.—From *Thomomys talpoides bullatus* (topotypes) to the northward, *T. t. attenuatus* differs in smaller size, lighter (less brownish, more whitish) color, smaller and slenderer skull. In detail, some cranial features diagnostic of *attenuatus*, when compared with *bullatus*, are: Anterolateral angle of zygoma less nearly a right angle; temporal ridges bowed outward at middle, instead of straight, and farther apart posteriorly than anteriorly instead of nearly parallel; sides of basioccipital nearly straight instead of concave.

From *Thomomys talpoides cheyennensis* (holotype and Wyoming specimens from: Pine Bluff; 1 mi. W Pine Bluffs, 5000 ft.; 12 mi. N and ½ mi. W Pine Bluffs) to the eastward, *T. t. attenuatus* differs in smaller size throughout and more slender skull. The two subspecies are indistinguishable in color.

From *Thomomys talpoides macrotis* (topotypes) to the southward, *T. t. attenuatus* differs in smaller size, slightly lighter (less brownish and more whitish) color, smaller and slenderer skull.

From *Thomomys talpoides rostralis* (specimens from the type locality) to the westward, *T. t. attenuatus* differs in smaller size; lighter (grayer, less brownish) color, smaller and less angular skull.

From *Thomomys talpoides clusius* (topotypes) to the northwestward, *T. t. attenuatus* differs in shorter body, slightly grayer color, less width across mastoid region of skull, smaller tympanic bullae, and more obtuse anterolateral angle on zygoma.

Remarks.—This subspecies is of smaller size than any of the geographically adjoining subspecies. Intergradation with *T. t. cheyennensis* is shown by specimens from two miles south and nine and one-half miles east of Cheyenne, Wyoming. Intergradation with *T. t. bullatus* or *T. t. clusius* or both is suggested by the larger size of the specimen from five miles southwest of Wheatland, Wyoming. Although large, this skull has the slender proportions of *attenuatus* to which the specimen is tentatively referred. Although the specimens from Avalo, Colorado, are typical *attenuatus*, the specimen from Pawnee Buttes, Colorado, is somewhat larger than typical *attenuatus* and suggests intergradation with the subspecies to the southward, for example, at Flagler, Colorado.

Specimens examined.—Total number, 44, and unless otherwise indicated in the Museum of Natural History of the University of Kansas.

Wyoming. *Niobrara County:* 10 mi. N Hatcreek Post Office, 5300 ft., 1. *Platte Co.:* 5 mi. SW Wheatland, 1 (U. S. B. S.). *Goshen Co.:* Little Bear Creek, 20 mi. SE Chugwater, 1 (U. S. B. S.). *Laramie Co.:* 5 mi. W and 1 mi. N Horse Creek P. O., 7200 ft., 1; 3 ½ mi. W Horse Creek P. O., 7000 ft., 6; 2 1/5 mi. W Horse Creek P. O., 6600 ft., 1; 2 mi. W Horse Creek P. O., 6600 ft., 2; Horse Creek 6500 ft., 1; 3 mi. E Horse Creek P. O., 6400 ft., 5; 6 mi. W Islay, 2 (U. S. B. S.); 2 mi. S and ½ mi. E Pine Bluffs, 5200 ft., 1; 7 mi. W Cheyenne, 6500 ft., 1; Cheyenne, 7 (U. S. N. M.); 1 mi. S and 4 ½ mi. E Cheyenne, 5200 ft., 1; 2 mi. S and 9 ½ mi. E Cheyenne, 5200 ft., 3; Arcola, 5200 ft., 4.

Colorado. *Weld Co.:* Pawnee Buttes, 5300 ft., 1 (U. S. B. S.). *Logan Co.:* Chimney Canyon, 10 mi. NE Avalo, 5100 ft., 5 (U. S. B. S.).

Museum of Natural History, University of Kansas, Lawrence. Transmitted January 15, 1951.

Table 1. MEASUREMENTS, IN MILLIMETERS, OF TWO SUBSPECIES OF THOMOMYS TALPOIDES.

Catalogue number or number of individuals averaged	Sex	Total length	Length of tail	Basilar length	Length of hind foot	Zygomatic breadth	Least interorbital constriction	Mastoidal breadth	Length of nasals	Breadth of rostrum	Length of rostrum	Alveolar length of maxillary tooth-row
<i>T. t. rostralis</i> , from type locality												
17092	♂	220	56	28	33.2	23.7	6.4	19.5	15.5	8.1	17.5	8.2
17095	♂	228	68	30	33.3		6.5	18.8	15.0	7.4	17.3	7.3
17091	♂	212	56	27	33.0	22.8	6.5	18.7	14.2	8.5	16.2	7.6
Average	♂	220	60	28.3	33.2	23.2	6.5	19.0	14.9	8.0	17.0	7.7
9 av.	♀	214	56	27.1	31.6	22.4	6.5	18.5	14.4	7.8	16.8	7.9
min.	♀	198	45	25	30.0	20.7	6.2	17.7	13.2	7.4	15.4	7.1
max.	♀	230	72	28.5	33.5	23.3	7.0	19.8	14.9	8.1	17.7	8.4
<i>T. t. attenuatus</i> , from type locality												
15095	♂	202	61	26	30.1	21.2	6.6	18.2	13.6	7.3	16.0	7.0
15094	♂	189	56	24	29.7	20.1	5.7	17.2	12.4	7.2	14.8	6.9
from 2 ½ mi. W Horse Creek P. O., 6600 ft.												
15100	♂	196	58	27	30.2	21.7	6.1	18.4	14.5	7.5	16.3	7.0
3 av.	♂	196	58	25.7	30.0	21.0	6.1	17.9	13.5	7.3	15.7	7.0
from type locality												
15096	♀	203	59	26	30.0		6.1	18.0	14.1	7.3	16.3	6.8
15098	♀	192	69	26	28.8	19.8	5.5	17.2	12.0	6.7	14.7	7.3
Horse Creek, 6500 ft.												
15103	♀	181	58	25	29.6	19.5	5.9	16.3	13.0	6.9	15.2	7.0
3 mi. E Horse Creek P. O., 6400 ft.												
15107	♀	190	54	27	30.5	20.5	6.0	17.9	13.5	7.3	16.4	6.8
15106	♀	192	55	26	30.8	21.05	6.5	18.2	12.7	7.6	15.5	7.0
5 av.	♀	192	59	26	29.9	20.3	6.0	17.5	13.1	7.2	15.6	7.0

*** END OF THE PROJECT GUTENBERG EBOOK TWO NEW
POCKET GOPHERS FROM WYOMING AND COLORADO ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.